

Confidentiality Agreement

This Confidentiality Agreement (this "**Agreement**"), dated as of ~~[September 9, 2026]~~ ("**Effective Date**"), is between Computer Supplies, LLC ("**Seller**"), a Delaware limited liability company located at 2301 Tech Drive, Atlanta GA 30033, and ~~[Data Center, LLC]~~, a ~~[Texas Limited Liability Company]~~ ~~[]~~ located at ~~[2722 Travis, Houston TX 77002]~~.

1. In connection with the purchase and sale of up to 80,000 GPUs (the "**Purpose**"), either party ("**Discloser**") may disclose Confidential Information (as defined below) to the other party ("**Recipient**"). Recipient shall use the Confidential Information solely for the Purpose and, subject to Section ~~33~~, shall not disclose such Confidential Information other than to its employees, directors, members, managers, attorneys, accountants, and financial advisors, ~~consultants, contractors, and other professional advisors~~ (collectively, "**Representatives**") who: (a) need access to such Confidential Information for the Purpose; (b) are informed of its confidential nature; and (c) are bound by written confidentiality obligations no less protective of the Confidential Information than the terms contained herein. Recipient shall safeguard the Confidential Information from unauthorized use, access, or disclosure using at least the same degree of care as the Recipient would use to protect its own Confidential Information, but in no event with less than a reasonable degree of care. Recipient shall be responsible for any breach of this Agreement caused by its Representatives. Recipient agrees to notify Discloser in writing within ~~a reasonable period after becoming aware~~ ~~3 days~~ of any unauthorized use, access, or disclosure of the Confidential Information of Discloser that may come to Recipient's attention.

2. "**Confidential Information**" means all non-public proprietary or confidential information disclosed on or after the Effective Date, including but not limited to, trade secrets, in oral, visual, written, electronic, or other tangible or intangible form, whether or not marked or designated as "confidential," ~~- that is, where practicable, marked or otherwise identified as confidential at the time of disclosure. and all notes, analyses, summaries, and other materials prepared by Recipient or any of its Representatives that contain, are based on, or otherwise reflect, to any degree, any of the foregoing ("Notes")~~ ~~and all notes, analyses, summaries, and other materials prepared by Recipient or any of its Representatives that contain or are based on the foregoing, which shall be the property of Recipient but shall be subject to the confidentiality obligation of this Agreement ("Notes")~~; provided, however, that Confidential Information does not include any information that: (a) is or becomes generally available to the public other than as a result of Recipient's or its Representatives' breach of this Agreement; (b) is obtained by Recipient or its Representatives on a non-confidential basis from a third party that was not legally or contractually restricted from disclosing such information; (c) Recipient establishes by documentary evidence was in Recipient's or its Representatives' possession prior to Discloser's disclosure hereunder; or (d) Recipient establishes by documentary evidence was or is independently developed by Recipient or its Representatives without using any Confidential Information. Confidential Information also includes (x) the facts that the parties are in discussions regarding the Purpose (or, without limitation, any termination of such discussions) and that Confidential Information has been disclosed; and (y) any terms, conditions, or arrangements discussed.

3. If Recipient or any of its Representatives is required by applicable law or a valid legal order to disclose any Confidential Information, Recipient shall, before such disclosure, notify Discloser, to the extent legally permitted, of such requirements so that Discloser may seek, at Discloser's expense, a protective order or other remedy, and Recipient shall reasonably assist Discloser therewith. If Recipient remains legally compelled to make such disclosure, it shall: (a) only disclose that portion of the Confidential Information that it is required to disclose; and (b) use reasonable efforts to ensure that such Confidential Information is afforded confidential treatment.

4. On Discloser's written request, Recipient shall, at Discloser's discretion, promptly return to Discloser or destroy all Confidential Information in its and its Representatives' possession other than Notes, and destroy all Notes; ~~provided, however, that Recipient may retain copies of Confidential Information that are created pursuant to its standard electronic backup and archival procedures and stored until the ordinary course deletion thereof. Recipient shall continue to be bound by the terms and conditions of this Agreement with respect to such retained Confidential Information; provided, however, that Recipient and its Representatives may retain copies of Confidential Information and Notes: (a) that are created pursuant to their standard electronic backup and archival procedures and stored until the ordinary course deletion thereof; (b) as required by applicable law, regulation, or bona fide internal document-retention or compliance policies; and (c) in the case of Notes and analyses, as retained by legal counsel for recordkeeping purposes. Recipient and its Representatives shall not be required to erase, delete, or destroy copies of Confidential Information residing on backup or archival systems in the ordinary course. Recipient's confidentiality obligations under this Agreement with respect to such retained Confidential Information shall continue only until the expiration of the term of this Agreement.~~

5. ~~This Agreement imposes no obligation on either party to disclose any Confidential Information or to negotiate for, enter into, or otherwise pursue the Purpose. Discloser makes no representation or warranty, express or implied, as to the accuracy or completeness of the Confidential Information, and shall not be liable to Recipient or any other person relating to Recipient's use of any of the Confidential Information or any errors therein or omissions therefrom. Recipient agrees it is not relying on any Confidential Information in pursuing the Purpose. Only those representations or warranties that are made to a purchaser in the final sale agreement when, as and if it is executed, and subject to such limitations and restrictions as may be specified in such a sale agreement, have any legal effect.~~

~~6.5.~~ Discloser retains its entire right, title, and interest, including all intellectual property rights, in and to all Confidential Information, and no disclosure of Confidential Information hereunder will be construed as a license, assignment, or other transfer of any such right, title and interest to Recipient or any other person.

~~7.6.~~ The rights and obligations of the parties under this Agreement expire ~~3-2~~ years after the Effective Date; provided that with respect to Confidential Information that constitutes a trade secret under applicable law, such rights and obligations will survive such expiration until, if ever, such Confidential Information loses its trade secret protection other than due to an act or omission of Recipient or its Representatives; provided that with respect to Confidential Information that constitutes a trade secret under applicable law, such rights and obligations will

survive such expiration only for so long as such Confidential Information continues to constitute a trade secret under applicable law, but in no event more than two (2) years after such expiration. All other rights and obligations of the parties under this Agreement terminate upon such expiration.

8.7. Recipient acknowledges and agrees that any breach or threatened breach of this Agreement will cause irreparable harm and injury to Discloser for which money damages would be an inadequate remedy and that, in addition to remedies at law, Discloser shall be entitled to equitable relief as a remedy for any such breach or potential breach without the posting of bond or other security, as a remedy for any such breach or potential breach, subject to the court's discretion and to the party seeking relief making the showing required by applicable law, including as to the posting of bond or other security. Recipient waives any claim or defense that Discloser has an adequate remedy at law in any such proceeding. Nothing herein shall limit the equitable or available remedies at law for Discloser.

9.8. This Agreement and all matters arising out of or relating to this Agreement including tort and statutory claims are governed by, and construed in accordance with, the laws of GeorgiaTexas, without giving effect to any conflict of laws provisions thereof that would result in the application of the laws of a different jurisdiction. Any legal suit, action, or proceeding relating to this Agreement must be instituted in the federal or state courts located in AtlantaHouston, GeorgiaTexas. Each party irrevocably submits to the exclusive jurisdiction of such courts in any such suit, action, or proceeding and waives any objection based on improper venue or forum non conveniens.

Commented [MT1]: Texas has Business Courts, and therefore, it is a superior and more appropriate choice to Georgia.

10.9. All notices must be in writing and addressed to the relevant party at its address set out in the preamble (or to such other address as such party specifies in accordance with this Section 10). All notices must be personally delivered or sent prepaid by nationally recognized overnight courier, email, or certified or registered mail (in each case, return receipt requested, postage prepaid) and are effective upon actual receipt.

11.10. This Agreement constitutes the entire agreement of the parties with respect to its subject matter, and supersedes all prior and contemporaneous understandings, agreements, representations, and warranties, whether written or oral, with respect to such subject matter. This Agreement may only be amended, modified, waived, or supplemented by an agreement in writing signed by both parties.

IN WITNESS WHEREOF, the parties have executed this Agreement to be effective as of the Effective Date.

Computer Supplies, LLC

[~~PARTY 2~~Data Center, LLC]

By _____
Name: Albert Rusk
Title: CEO

By _____
Name: Brenlee Fox
Title: CEO